

24STCV04783 24STCV04783

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 24STCV04783 Hearing Date: September 1, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV04783

OSVALDO

PAREDES, AN INDIVIDUAL vs C.R. LAURENCE, CO., INC., A CALIFORNIA CORPORATION,
et al.

September

1, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF OSVALDO PAREDES' MOTION TO COMPEL DEFENDANT CRH AMERICAS, INC. TO
SERVE VERIFICATIONS TO ITS RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF
DOCUMENTS, FORM INTERROGATORIES–EMPLOYMENT LAW, REQUEST FOR ADMISSION, AND

SPECIAL INTERROGATORIES, SET ONE.

RULING:

The Court orders the Motion
of calendar as moot and denies sanctions.

Defendant CRH Americas, Inc. to give notice.

I.

BACKGROUND

On February 26, 2026, OSVALDO
PAREDES (Plaintiff) filed a Complaint against C.R. LAURENCE, CO., INC.; OLDCASTLE
BUILDING ENVELOPE, INC.; CRH AMERICAS, INC.; NELSON CHAVEZ; and MARIA ROBINSON
(Defendants), listing Causes of Action for:

1.

DISCRIMINATION, INCLUDING DISCRIMINATORY DISCHARGE, BASED ON ACTUAL OR
PERCEIVED DISABILITIES

2.

FAILURE TO ENGAGE

3.

FAILURE TO ACCOMMODATE

4.

DISCRIMINATION, INCLUDING DISCRIMINATORY DISCHARGE, BASED ON NATIONAL ORIGIN
AND/OR IMMIGRATION STATUS

5.

DISCRIMINATION, INCLUDING DISCRIMINATORY DISCHARGE, BASED ON AGE

6.

RETALIATION, INCLUDING RETALIATORY DISCHARGE BASED ON ACTUAL OR PERCEIVED
PARTICIPATION IN PROTECTED ACTIVITIES

7.

HARASSMENT AND/OR HOSTILE WORK ENVIRONMENT

8.

FAILURE TO PREVENT

9.

AIDING, ABETTING, AND/OR INCITING VIOLATIONS OF THE FEHA

10.

RETALIATORY UNFAIR IMMIGRATION RELATED PRACTICES.

Plaintiff alleges that Defendants
wrongfully terminated his employment, based upon disabilities, national origin,
and age.

On July 6, 2026, Plaintiff
filed the Motion to compel Defendant CRH AMERICAS, INC. to serve verifications to
various discovery requests. Plaintiff also requested \$2,400.00 in sanctions
against that Defendant and counsel.

CRH AMERICAS, INC. (Defendant)
opposes, contending that the Motion is moot after service of verifications.

II.

LEGAL STANDARD

Where respondents served
untimely discovery responses after parties have filed motions to compel initial
responses, courts have broad discretion as to ruling, including ordering the
motion off calendar. (Sinaiko Healthcare
Consulting, Inc. v. Klugman (2007) 148 Cal.App.4th 390, 409.)

III.

ANALYSIS

On August 21, 2026,
Plaintiff filed a Notice of Partial Withdrawal of the Motion, while leaving
sanctions at issue.

Defendant reportedly served
the verifications that Plaintiff sought, on August 10, 2026, and now argues

substantial justification for avoidance of sanctions.

Where satisfactory

responses have been served after the filing of motions to compel, courts nonetheless may award sanctions. (*County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (*Deck v. Devs. Inv. Co.* (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1297.)

Here, the Court finds

substantial justification, based upon Defendant’s ongoing meeting and conferring for extra time to serve verifications, while contending with voluminous discovery involving four related cases, and multiple corporate representatives.

IV.

CONCLUSION

Therefore, the Court orders

the Motion off calendar, and denies sanctions.